



Appeal Decision

Site visit made on 18 August 2026

by K Mee BA(Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 9th September 2026

Appeal Ref: 6011458

2B Minehead Avenue, Manchester M20 1FW

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr James Nichols against the decision of Manchester City Council.
 - The application Ref is 143665/FO/2025.
 - The development proposed is described as: demolition of existing semi-detached dwelling and replacement with 7no apartments.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. During the appeal, the appellant submitted additional information, including a gap analysis, amenities map, shadow analysis, design considerations and block plan. The parties have had the opportunity to comment on this material, and I am satisfied that its consideration would not result in prejudice to any party.
3. The Government published a revised National Planning Policy Framework (the Framework) on 17 August 2026. The main parties were provided with an opportunity to comment. I have had regard to the 2026 version of the Framework in my decision. References hereafter are to the August 2026 version.

Main Issues

4. The main issues are:
 - the effect of the proposed development on the character and appearance of the surrounding area;
 - the effect of the proposed development on the living conditions of neighbouring occupiers, with regard to noise and disturbance;
 - the effect of the proposed development on the living conditions of the neighbouring occupiers of 2 Minehead Avenue (No 2), with regard to outlook and light; and
 - whether the proposed development would provide acceptable living conditions for future occupiers, with regard to the provision of private amenity space.

Reasons

Character and Appearance

5. Minehead Avenue is a well-established residential street characterised by interwar, 2-storey semi-detached and short-terrace dwellings with hipped roofs, set within relatively spacious plots and with regular spacing. Whilst there are minor variations, including the subdivision of some properties into apartments or maisonettes, in general the dwellings have uniform fenestration and footprints such that there is a strong sense of rhythm, consistency and coherence in the street scene. Although there are isolated examples of short-terrace dwellings with front gable features, and corner properties with varying footprints, these do not represent the prevailing pattern of development.
6. The appeal site comprises a pair of semi-detached dwellings with generous rear gardens. Although differing in appearance from the prevailing character of the area, and featuring a shallower roof pitch, they share the same broadly consistent building line and are of a comparable scale to surrounding development. Whilst their poor condition makes them more noticeable, their scale and siting are such that they remain relatively unassuming within the street scene.
7. The proposal would comprise a block of 7 apartments with frontage landscaping, a side access drive serving a rear communal parking area, and limited rear external amenity space. The building would project forward of the prevailing building line, with a front gable feature increasing its prominence within the street scene. Its substantial depth, being significantly greater than that of surrounding dwellings, would amplify its visual presence particularly given the angled orientation of, and open side garden to, No 2.
8. The proposed front gable, incorporating a window, together with the two front dormers give the building the clear appearance of a 3-storey structure, at odds with the prevailing character of the area. Although the proposed eaves height, ridge height and materials would reflect those of neighbouring properties, this would not alleviate the harm arising from the siting, design, scale and massing of the proposed development. Moreover, and notwithstanding the distance of the gaps between buildings being replicated, the substantial footprint and large areas of hardstanding would appear as a cramped form of development. For these reasons, the proposal would be uncharacteristic of the underlying pattern and grain of development locally and would significantly harm the character and appearance of the area.
9. I have considered the examples of flatted developments in the wider vicinity, including at Minehead Court and the Johnnie Johnson Housing Trust site. However, these developments occupy materially different contexts. Minehead Court is set behind Minehead Avenue forming part of a wider cluster of low-level residential blocks and serving as a central feature within the locality including a community hub. While the Johnnie Johnson Housing Trust building occupies a separated position at the end of the street set behind an area of parking and landscaping. Neither is experienced within the same context as the prevailing character of interwar dwellings on Minehead Avenue. Consequently, these examples are not directly comparable to the appeal proposal and do not alter my findings above.

10. I acknowledge that the removal of the existing dwellings, which are in a poor condition, could enhance the appearance of the site. However, this does not justify redevelopment with a scheme that is inconsistent with the street scene.
11. Accordingly, I find that the proposed development would be materially harmful to the character and appearance of the surrounding area. It would conflict with Policy JP-H1 of the Places for Everyone Joint Development Plan Document 2022-2039 (March 2024) (the DPD) and Policies SP1 and DM1 of the Manchester City Council Core Strategy Development Plan Document (July 2012) (the CS). Together, and amongst other things, these seek to secure good quality design and high-quality housing which make a positive contribution to neighbourhoods including creating well designed places that enhance character, protect and enhance the built environment having regard to appropriate siting, layout, scale, form, massing, materials and detail.

Living Conditions – neighbouring occupiers

12. The drive running along the common boundary with 2A Minehead Avenue would also serve the communal external amenity space and give access to the internal bin store. The surrounding area is characterised by spacious private rear gardens which, despite the suburban environment, currently enjoy a reasonable degree of peace, quiet and privacy. Whilst garden activity inevitably generates some noise and disturbance, this would differ materially from the more frequent vehicle movements, arrivals and departures associated with the proposed parking area. The resulting increase in noise and activity at the rear of the proposed building, despite not being constant, would represent a noticeably different environment to that currently experienced.
13. This effect would be compounded by the availability and use of the communal external amenity space serving the future occupiers of the 7 flats, which could accommodate up to 22 people. Although the principal access to the apartments would be from the front elevation, the rear of the site would nevertheless remain a focus for parking, servicing and outdoor activity. Taken together, these factors would lead to an unacceptable level of noise and disturbance for neighbouring occupiers.
14. I have been referred to examples of parking courts located adjacent to the rear gardens of nearby dwellings, including that at Minehead Court. However, limited information has been provided regarding the circumstances of those developments or the site context that existed prior to their construction. In any event, the existence of such developments elsewhere does not diminish the harm I have identified in this case. Nor does the benefit of providing off-street parking, notwithstanding existing parking pressures in the area, outweigh that harm.
15. Consequently, the proposed development would result in material harm to the living conditions of neighbouring occupiers, with regard to noise and disturbance. It would conflict with Policy JP-H1 of the DPD and Policies SP1 and DM1 of the CS which together seek to secure good quality and design, requiring development to make a positive contribution to the health and wellbeing of residents having regard to the effect on amenity.

Living Conditions – occupiers of 2 Minehead Ave

16. The adjacent dwelling at No 2 is a corner plot angled within the street, resulting in an irregularly shaped private rear garden area that is smaller than those of many neighbouring properties. The proposed building would be positioned closer to the common boundary and would introduce a substantial increase in the depth and overall height of built form along much of that boundary.
17. Notwithstanding the separation distance between the proposal and No 2, the development would still have a significant adverse effect on the outlook from, and light available to, that property. The outlook from the rear of No 2 would be materially diminished and, owing to the south-westerly siting of the proposal, the appellant's Shadow Study Commentary indicates that substantial overshadowing of the rear garden would occur, particularly around the summer solstice, with all of the rear garden remaining in shadow around the equinox.
18. Consequently, the proposed development would materially harm the living conditions of the neighbouring occupiers of No 2, with regard to outlook and light. It would therefore be contrary to Policy JP-H1 of the DPD and Policies SP1 and DM1 of the CS which together seek to secure good quality and design, requiring development to make a positive contribution to the health and wellbeing of residents having regard to the effect on amenity.

Living Conditions – future occupiers

19. The proposal includes areas of landscaping adjacent to the front entrance paths, the route to the rear bin store and the habitable room windows of the ground-floor apartment 3. The appellant contends that these areas, amounting to approximately 120sqm and including circulation space, would provide sufficient communal amenity space and exceed the minimum standards encouraged within the Manchester Residential Quality Guidance (March 2017) (the SPD). However, no apartment would benefit from private external amenity space, and the proposed communal areas would be fragmented and limited in size, reducing their functionality, with those to the frontage also lacking a reasonable degree of privacy.
20. Whilst I acknowledge that the appeal site is within easy walking distance of attractive public open spaces and sports facilities, the use of public and private open space differs. Private outdoor space serves a distinct function, supporting day-to-day recreation, social interaction with family and friends, children's play and routine domestic activities such as hanging out washing. Moreover, public open space is less conducive to spontaneous use, and younger children would typically require direct supervision. On the evidence before me, I am not satisfied that access to such facilities would adequately compensate for the shortcomings of the on-site provision, particularly given that several of the flats could reasonably be expected to accommodate families.
21. The appellant draws attention to the SPD's acknowledgement that the desirability of external amenity space will vary between households, and that some residents may prefer not to bear the costs or responsibilities associated with its maintenance. However, the SPD also recognises that private outdoor space can be an important, and in some cases necessary, component of residential amenity. It further emphasises that such space should be appropriately located and usable if it is to serve its intended purpose. On the evidence before me, I cannot be

certain that the likely future occupiers would have limited need for private amenity space. In any event, neither this argument nor the suggested imposition of conditions relating to landscaping and security would overcome the harm I have identified.

22. I therefore find that the proposed development would fail to provide acceptable living conditions for future occupiers, with regard to the provision of private amenity space. It would be contrary to Policy JP-H1 of the DPD and Policies SP1 and DM1 of the CS which together seek to secure good quality and design, requiring development to make a positive contribution to the health and wellbeing of residents having regard to the effect on amenity.

Other Matters

23. The appellant refers to compliance with Policy JP-H3 of the DPD which relates to the type, size and design of new housing. However, compliance with this policy does not outweigh nor address the conflict identified with other policies within the development plan as set out above.
24. The appeal site is not in an area of elevated flood risk, does not contain any listed or locally listed buildings and is not within or near to a conservation area. Furthermore, no concerns have been raised with regards to the privacy of neighbouring or future occupiers. However, an absence of harm in these respects is a neutral factor.

Planning Balance

25. I have found that the proposal would cause undue harm to the character and appearance of the area, materially harm the living conditions of neighbouring occupiers, and fail to provide satisfactory living conditions for future residents. Consequently, it would conflict with the relevant development plan policies, which broadly align with the objectives of the Framework. I ascribe considerable weight to these identified harms.
26. The proposal would deliver 7 additional dwellings, contributing to the Government's objective of significantly boosting housing supply. The main parties agree that the Council can currently demonstrate a 5-year supply of deliverable housing sites, with a confirmed current supply of 7.5 years, and I have had regard to their respective submissions on the robustness of that position. Nevertheless, irrespective of the Council's housing land supply position, the presumption in favour of sustainable development set out within Policy S4 of the Framework is engaged given the appeal site's location within a settlement. This requires that development proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects.
27. There is no objection to the principle of the demolition of the existing dwellings. The proposal would make effective use of underutilised land, increase housing density, and would deliver 7 additional dwellings in a sustainable location with good access to services and facilities. It would also provide environmental benefits, including through improved energy efficiency and the removal of asbestos from the site, and the incorporation of inclusive and adaptable design measures. Mindful of the modest scale of the development, I attribute significant weight to the benefits arising from it.

28. Consequently, and mindful of Framework Policy S4(2), the adverse effects of the development would substantially outweigh the benefits identified above. As a result, the proposal would not benefit from the presumption in favour of sustainable development set out under Policies S3 and S4 of the Framework.

Conclusion

29. For the reasons given above, the proposal would conflict with the development plan as a whole. The material considerations in this case, including the Framework, do not indicate that the decision should be taken otherwise than in accordance with the development plan. Therefore, the appeal should be dismissed.

K Mee

INSPECTOR